

PROPRIETARY SOFTWARE LICENSE AGREEMENT

Version 1.1

Effective Date: Upon Receipt

Licensors Identity

For the purposes of this Agreement, the “Licensor” is defined as:

Brandon (“bsmedicineman”)

Base Wallet (USDC): 0xca822f91db3a764ec6dbc141e21115c4670dc92c

Solana Wallet (USDC): AWZd4fMYiFMEHTjGgkTKqV5PHir712XaDwoMEgbUWurx

Control of the above wallet addresses constitutes full and binding authority of the Licensor. No legal name is required or implied.

Licensed Work: BANKR Agent Skill — Full System Specification, including but not limited to:

- 4D Hyperspace Vector Architecture
- Sentinel Risk Engine (14+ modules)
- Hybrid Mimicry Engine
- Synchronization Engine
- Temporal Modulation Layer
- ODML Access Model
- NITE Tier Monetization Logic
- Execution Layer & Resonance Bridge
- All associated algorithms, schemas, data models, and documentation

1. GRANT OF LICENSE

1.1 Limited License

Licensor grants Licensee a **non-exclusive, non-transferable, non-sublicensable, revocable** license to use the Licensed Work solely for the purpose of operating authorized BANKR agents.

1.2 Scope of Use

Licensee may:

- Deploy the Licensed Work as an agent on the BANKR platform
- Execute trades using the Licensed Work
- Access ODML intelligence as permitted by NITE tier

Licensee may **not**:

- Redistribute the Licensed Work
- Publish the Licensed Work
- Sell or sublicense the Licensed Work
- Reverse engineer, decompile, or derive source logic
- Create derivative works without written permission

2. OWNERSHIP

2.1 Intellectual Property

Licensor retains **all rights, title, and interest** in and to the Licensed Work, including all upgrades, modifications, extensions, and derivative logic.

2.2 No Transfer of Rights

This Agreement does not transfer ownership of any intellectual property.

3. FEES & ROYALTIES

3.1 Developer Fee

Licensee agrees that every executed trade using the Licensed Work shall automatically route a **0.1% developer fee** to the following addresses:

- **Base (USDC):** 0xca822f91db3a764ec6dbc141e21115c4670dc92c
- **Solana (USDC):** AWZd4fMYiFMEHTjGgkTKqV5PHir712XaDwoMEgbUWurx

3.2 Platform Fees

Licensee acknowledges that BANKR platform fees apply independently and do not reduce Licensor’s developer fee.

3.3 NITE Tier Monetization

Access to extended ODML intelligence requires Licensee to maintain the required \$NITE token tier. This requirement is part of the licensing model.

4. ACCESS CONTROL

4.1 Signature-Based Authorization

Access to the Licensed Work requires cryptographic signature authorization from the Licensee’s wallet.

4.2 Revocation

Licensor may revoke access if Licensee violates any term of this Agreement.

4.3 No Unauthorized Access

Licensee may not attempt to bypass ODML gating, NITE tier enforcement, or signature authorization.

5. CONFIDENTIALITY

5.1 Confidential Information

The Licensed Work, including all algorithms, models, schemas, and documentation, is confidential.

5.2 Non-Disclosure

Licensee shall not disclose, share, publish, or leak any portion of the Licensed Work.

6. RESTRICTIONS

Licensee shall not:

- Copy or distribute the Licensed Work
- Host the Licensed Work publicly
- Publish the Licensed Work on GitHub or any platform
- Sell access to the Licensed Work
- Integrate the Licensed Work into competing systems
- Use the Licensed Work to build derivative agents without permission

7. TERMINATION

7.1 Automatic Termination

This Agreement terminates immediately if Licensee:

- Attempts to reverse engineer the system
- Attempts to redistribute or publish the Licensed Work
- Violates ODML access rules
- Violates NITE tier requirements

7.2 Effect of Termination

Upon termination, Licensee loses all access to:

- ODML intelligence
- 4D timing models
- Sentinel modules
- Execution logic
- All future updates

Developer fees already collected remain property of Licensor.

8. LIMITATION OF LIABILITY

The Licensed Work is provided “as-is” without warranty. Licensor is not responsible for:

- Trading losses
- Market volatility
- Platform outages
- Smart contract failures
- Third-party integrations

Licensee assumes all trading risk.

9. GOVERNING LAW

This Agreement is governed by the laws of the Licensor’s jurisdiction.

10. ACCEPTANCE

By using, deploying, or accessing the Licensed Work, Licensee agrees to all terms of this Agreement.

Licensor Signature (Wallet Authorization)

Base: 0xca822f91db3a764ec6dbc141e21115c4670dc92c

Solana: AWZd4fMYiFMEHTjGgkTKqV5PHir712XaDwoMEgbUWurx

Licensee Signature (Wallet Authorization)